

2. **M-CV-0097214 Jenson, Andrew v. Bal, Nora**

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court and default and default judgment for possession were entered against the defendant on May 26, 2026.

3. **S-CV-0044551 Duncan, Royce D v. Mason, Thomas A**

This tentative ruling is issued by the **Honorable Todd D. Irby**.

Final Accounting

This matter is on for continued hearing on a final accounting after sale of real property by partition. By prior tentative ruling, the Court continued the hearing and noted a deficiency and some areas of the accounting that required additional explanation. Since then, plaintiff has filed and served notice of continued hearing, a supplemental final account, a corrected final account, and a declaration of counsel. All of the Court's previously noted concerns have now been addressed.

The newly filed documents raise a new issue for the Court, however, as the referee intends to refund to defendants any part of the withheld \$10,000 that is not used. However, no explanation is provided as to how such a refund would be implemented, especially in light of the fact that defendants' current service address appears to be the subject premises. Explanation is needed.

The Court, on its own motion, continues the hearing once more to be heard on **July 14, 2026 at 8:30 a.m. in Department 32**. By June 30, 2026, plaintiffs are directed to file and serve on all parties (1) a notice of continued hearing and (2) supplemental declaration(s) outlining a detailed plan for the refund to defendants of all or part of the withheld \$10,000.

4. **S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA Inc.**

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is unopposed. While the motion addresses several issues raised by the court the last time it considered preliminary approval of the parties' settlement (Law and Motion Minutes, Jan. 13, 2026), the court observes three areas where clarification is needed.